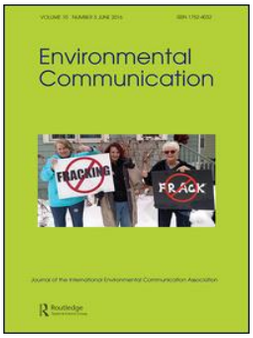

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Animal Production, Ag-gag Laws, and the Social Production of Ignorance: Exploring the Role of Storytelling

Garrett M. Broad

In recent years, a number of so-called "farm protection" or "ag-gag" laws have been proposed and passed in state legislatures across the USA. These laws generally ban the undercover photographing or videotaping of industrial animal agricultural production and processing facilities. Proponents of the legislation suggest that such bills protect local farm economies and prevent misinformation campaigns by animal rights activists. Diverse sets of critics have argued against the bills, suggesting that they prevent whistleblowers from exposing animal cruelty and stand in the way of the public's right to know. This paper analyzes the debate by blending theory from science and technology studies regarding the social production of knowledge and ignorance with communication theory that explores the power of storytelling in shaping public understandings of social life. It investigates the stories told by three oppositional stakeholder groups—members of industrial animal agribusiness who defend the legislation, small-scale producers and consumers who believe the legislation prevents productive transparency, as well as animal advocacy and first amendment interests who believe the legislation masks fundamental flaws in the contemporary animal agricultural system. The paper provides insight into how competing mediated narratives frame ideological battles over the present and future of animal production processes. It demonstrates how fundamental and often opposing value systems construct what we consider knowledge and non-knowledge in the context of our contemporary risk society and in the digital media age.

Keywords: *animals; media; storytelling; knowledge; agnotology; food systems*

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Introduction

The contemporary food system offers a site of inquiry for the pursuit of fundamental questions about human social life, health, and the environment (Opel, Johnston, & Wilk, 2010). By providing information about how food is produced, distributed, and consumed, mediated narratives about the food system play an important role in shaping the eating public's knowledge related to these issues (Lindenfeld, 2010). Today, industrial-scale animal production represents a central aspect of this food system, one that is the site of significant contestation on account of its social, environmental, public health, and ethical implications (Akhtar, 2012). Scholars of communication and the environment should therefore be interested in how mediated depictions shape what we do and do not know about these animal production processes (Freeman, 2009).

In this paper, I analyze recent legislative efforts that aim to criminalize the undercover filming of animal production and slaughter facilities. Called "agricultural interference" or "farm protection" bills by supporters, and referred to as "ag-gag" laws by opponents; the controversy over the statutes speaks to larger questions about the epistemic rights of the public in an age of complex techno-environmental systems. This broader area of knowledge-oriented scientific contestation is one that has been pursued in depth by researchers in the fields of science and technology studies (STS). Notable contributions in this area come from Beck (1992) and Beck & Wehling (2012) in their discussions of knowledge in contemporary risk society and reflexive modernity, as well as by Proctor (2008) in his investigations of the social production of ignorance, what he termed "agnotology."

In the literature review that follows, I argue that communication theory regarding the role of mediated storytelling in the process of knowledge production (Fisher, 1985; Gerbner, 1999) represents a valuable bridge to supplement STS theory. Guided by a storytelling analysis approach to qualitative inquiry, subsequent sections of the paper highlight the narratives put forth in media by the various stakeholders involved in the farm protection/ag-gag dispute. An analysis of the stories told by these groups provides insight into the ways in which competing mediated narratives shape contemporary ideological battles regarding the present and future of animal production processes. Further, the findings of the research speak to issues that go beyond the food system alone, as the work demonstrates how fundamental and often opposing value systems construct what we consider environmental knowledge and non-knowledge in the context of global risk society and the digital media age.

Knowledge, Non-knowledge, and Reflexive Modernity

Understanding the epistemological foundations of social, cultural, and scientific knowledge has long been a foundation of scholarship related to science, technology, and the environment (Jasanoff, 2005). In recent years, scholars in the domain of STS have called for greater attention to those factors that shape not only what the public *knows* about pertinent social issues, but also what the public *does not know*. The

co-production of knowledge and non-knowledge has been conceptualized as one of the defining features of contemporary global society (Domínguez Rubio & Baert, 2012). As Sullivan and Tuana (2007) suggested, by documenting the substance and machinations of cultural ignorance, scholars have, "the potential to reveal the role of power in the construction of what is known and provide a lens for the political values at work in our knowledge practices" (p. 2). Proctor (2008) coined the term "agnotology" to describe the cultural production of ignorance[1] and its study, as he argued that three potentially overlapping forces shape its formation. He suggested that ignorance can exist as a native state of non-knowledge, can arise through passively selective choices that produce lost realms of knowledge, or can be produced through strategic ploys that actively—and often mischievously—construct ignorance.

This scholarly exploration into the making of non-knowledge makes a good deal of sense within the context of the contemporary global risk society and reflexive modernity. As outlined by Beck (1992), the primary thrust of the risk society concept is that modernity is characterized by the emergence of novel risks to human health and to the environment. Notably, the new risks faced by global society have been created by the successes and progress of industrial modernity itself. Contestation around political and scientific risk discourse has emerged as a natural outgrowth of these dynamics. According to leading scholars Beck and Giddens, most laypersons, most of the time, had historically placed a generally unthinking trust in the practices of experts with respect to those areas in which their own technical knowledge was marginal or non-existent. Reflexive modernity, however, has shed light on the limits of scientific knowledge for the broader public. This has led, in Giddens' (1990) words, to a "public relations" problem for those experts who would seek to preserve lay trust in expert systems, with experts now required to respond to counter-evidence and concerns (p. 130). Within this context, therefore, one would expect ongoing contestation between those in control of advanced techno-environmental system, on one hand, and members of diverse publics, on the other hand, regarding the provision of information, the processes of debate, and the nature of knowledge and non-knowledge in a society characterized by risk.

Storytelling and Society

A central strength of STS-oriented scholarship on the social production of non-knowledge has been researchers' attention to the historical and institutional factors that form the foundation for continued public ignorance or confusion on important social issues (Proctor, 2008). Oreskes and Conway's (2010) research on the "creation of doubt" in debates over climate change stands as an operative example. Still, while this previous work serves as a necessary foundation for subsequent research on the interplay between knowledge and non-knowledge, it also points to some of the theoretical gaps that remain in its study. Notably, in a case study of the tobacco industry, Christensen (2008) argued that greater attention to communication and media dynamics represents a necessary area of further exploration in this scholarly domain. To date, he argued, such forces had, "remained something of a black box.

Agnogenesis goes in. Ignorance goes out" (p. 262). Christensen's contribution was important in that he highlighted the vital role that communicative and mediated storytelling plays in how people understand and construct knowledge in a complex social world.

In a seminal work in the field of communication studies, Fisher (1985) described humans as the storytelling animal—homo narrans—those who were surrounded by stories and situated within a paradigm of narrative rationality:

> rationality is determined by the nature of persons as narrative beings – their inherent awareness of narrative probability, what constitutes a coherent story, and their constant habit of testing narrative fidelity, whether the stories they experience ring true with the stories they know to be true in their lives. (p. 75)

Similarly, Gerbner (1999) described how we live in a world "erected by stories," those that serve to "weave the seamless web of our cultural environment." He introduced a three-pronged framework for understanding the overlapping functions of story in society, a typology that guides the storytelling approach that forms the foundation of this current paper's qualitative analysis. Gerbner explained that stories fulfill three primary tasks: "to reveal how things work, to describe what things are, and to tell us what to do about them" (p. 9).

The influence of theoretical frameworks that emphasize narrative storytelling as a fundamental shaper of our social world has been strong within the fields of communication, media studies, and other interdisciplinary domains. The production of knowledge and non-knowledge can be seen to take shape in large part through the interaction of storytelling practices across the multi-modal forms of communication that are present in society, with media playing a vital role in this process. This theoretical foundation suggests that if we are interested in investigating how knowledge is or is not constructed on a specific environmental topic, we should take stock of the scope and content of the stories that characterize contemporary mediated discussions. It is a conceptual and methodological supplement to existing research that can help decipher the "black box" that leads to knowledge or non-knowledge. It prompts researchers to ask, in the context of global risk society and reflexive modernity, what are the dominant narratives that typify media storytelling related to complex technological systems? How and why do vested interests maintain the power of these narratives? How do opposition and activist groups attempt to reshape the type of stories that are told in order to combat what they see as public ignorance on social issues? The remainder of this paper explores these questions through a focus on the contemporary American industrial animal production system and the case of farm protection or ag-gag laws. Drawing from Gerbner's (1999) three-pronged framework of storytelling and society, I explore the "ag-gag" debates by demonstrating how different sets of stories about what industrial animal agriculture is, what it does, and what we should do about it reveal distinct sets of value systems. This interplay between storytelling practices and underlying value systems functions to shape what we conceive of as knowledge or non-knowledge within the contemporary industrial food system.

Industrial Animal Production, Animal Advocacy, and Mediated Image Politics

While animal husbandry, animal slaughter, and animal product consumption have been a part of the food system for millennia, the recent rise of "factory farming" has drastically altered the dynamics of this landscape. As the Pew Commission on Industrial Farm Animal Production (2008) described, animal agriculture has experienced "warp speed growth" over the last 50 years. Today, 99% of all animal products consumed in the USA come from factory farm-style meat and animal production, with the largest types of these factory farms—referred to as concentrated animal feeding operations (CAFOs) or industrial farm animal production (IFAP)—containing up to 125,000 animals. Animals are raised in extremely compact indoor spaces, are selectively bred to enhance specifically marketable traits, and are treated with a variety of growth promoters and antibiotics that speed up productivity and attempt to combat disease from within often unsanitary farming conditions (Akhtar, 2012). The rise in factory farming has seen a concurrent restructuring of the animal slaughter and meat-processing industries, which are characterized by an ever-increasing push to accelerate the speed of slaughter in order to maintain profitability (Pachirat, 2011). What has emerged from these economic and technological changes is increased intensification of animal production processes, as well as corporate consolidation that allows a few vertically integrated companies to exercise monopoly power across the animal production system (James, Hendrickson, & Howard, 2012).

These changes, however, have generally occurred out of sight of the eating public, with consumers remaining mostly unaware and uninterested in the processes through which their animal-based protein makes its way to their plates (Pew Commission, 2008). The US Government props up the status quo in industrial animal agriculture through a variety of legal, economic, and regulatory supports. Governmental and industry behaviors spur increased consumption by keeping the prices of animal products artificially low, as they offer direct subsidies to major producers, externalize significant environmental and public health costs, and overlook concerns related to animal cruelty and worker safety (Simon, 2013). Mainstream public discourse tends to further reinforce the structural power of the animal production industry. State-level agricultural disparagement laws, for instance, lower the barriers to entry for food producers who aim to initiate lawsuits against critics of their products. Made famous when Oprah Winfrey was sued by beef-producing interests after she made disparaging on-air comments about meat production and mad cow disease, these frivolous "food libel" lawsuits subvert traditional legal standards and can have a chilling effect on media discussions related to animal production processes (Asmus, 2010). Americans are also surrounded by a symbolic environment of advertising and marketing that constantly trivializes and deflects animal suffering in the system, as it creates narratives about "happy animals" and constructs cognitive barriers between "animals" and "meat" (Grauerholz, 2007). News media further reinforce these practices through a continued focus on farmed animals as commodities (Freeman, 2009). Critics such as Pachirat (2011) have argued that these collective dynamics contribute to a "politics of

sight" that relies on an obfuscation and concealment of the realities of animal production and slaughter in order to maintain this state of affairs.

In recent decades, opposition to the treatment of animals in factory farming—on account of its intersecting negative environmental, economic, occupational, nutritional, food safety, and animal welfare implications—has developed into a primary prong of animal advocacy. It should be mentioned, however, that these activist efforts are themselves grounded in quite a diverse group of philosophical perspectives about human–animal relationships. Animal welfare groups, for instance, generally take a moderate and reformist stance in their work, calling for incremental changes to animal handling through conventional legal structures. Proponents of animal rights tell a different story, calling for a more fundamental rethinking of animal exploitation and the ideology of "speciesism" that places humans above all other non-human animals (Singer, 2002). Coupled with the industrial animal agriculture systems' economic, legal, and cultural power, the lack of a cohesive agenda among animal activists makes the fight against factory farming particularly challenging.

In the face of ongoing structural and communicative challenges, animal advocates of all stripes have worked hard to inject their oppositional stories into the media ecologies of the eating public. Groups and individuals have drawn from a complement of tactics—including persuasive appeals, protests and demonstrations, personal decisions, civil disobedience, legal avenues, and undercover surveillance, among other techniques—to arouse public concern and action (Munro, 2005). In recent years, animal activist groups have been able to garner media attention through the distribution of undercover videos that highlight animal cruelty and food safety concerns in animal production processes (Tonsor & Olynk, 2011). This digital media storytelling has challenged the industry's dominant narrative regarding the safety and ethics of its everyday practices. Visuals of dead or near-dead animals—often acquired through undercover means—play into the interests of media producers who rely on dramatic footage and headlines as a hook to engage audience interest and provoke public discussion through affective engagement (Munro, 2005). This type of work is characteristic of the "image events" described by Delicath and DeLuca (2003)—the subaltern community of animal activists aims to use shocking images to increase the visibility for their marginalized concerns, generate broader argumentation and debate, and expand the political imagination.

Visual image events related to animal suffering in factory farming have relevance, therefore, well beyond the specific instances of cruelty that are documented through video and photography. For the animal agriculture industry, these digital media presentations clearly represent a threat—what Giddens (1990) would see as a legitimate "public relations" problem—for those at the helm of the techno-environmental system. Industry experts have documented a significant connection between media attention to animal welfare concerns and the distribution of undercover videos, arguing that this negative media coverage has led to reductions in meat purchases among some consumers (Tonsor & Olynk, 2011). In the face of this image-oriented challenge from animal activists, the animal production industry has responded with

efforts to maintain control of a mediated narrative that is central to its continued operations and growth.

Introducing the Ag-Gag Laws[2]

Laws aimed at prohibiting unauthorized individuals from taking photographs and videos of animal agricultural operations were first introduced in the early 1990s, as the states of Kansas, Montana, and North Dakota each passed some early versions of the legislation (Lee, 2013). This initial push emerged around the same time as the introduction of the more broadly focused "agricultural disparagement" or "food libel" laws (Asmus, 2010); both can be seen as part of a larger initiative by major players in the food production industry to maintain discursive and structural dominance in the context of contemporary reflexive modernity. In the wake of several scandals brought on by undercover videotaping of cruel and/or unsafe industry practices in animal production, recent years have seen a significant push at the state-legislative level to draft laws intended to squelch the undercover documentary practices of animal advocates, specifically. The laws vary in their focus, depth, and legal language, but each is ultimately concerned with preventing the filming and distribution of undercover videos at large-scale factory farms and slaughterhouses. Referred to as "agricultural interference" or "farm protection" statutes by its supporters, the "ag-gag" moniker was coined by *New York Times* columnist Mark Bittman in an editorial that decried the practice (2011).

At the time of this writing, ag-gag laws had been enacted in six states and introduced in at least 16 others, with most of the activity coming since 2011[3] (Lee, 2013). Many of the bills bear a striking resemblance to "model legislation" produced by the American Legislative Exchange Council (ALEC), an influential consortium of conservative legislators, businesses, lobbyists, and think-tank members (Potter, 2012). ALEC's (2003) "Animal and Ecological Terrorism Act" was drafted in 2003 as a broadly defined model statute to crack down on activists who attempt to interfere with and/or expose the practices of animal research and agricultural facilities. ALEC's influence was felt in the federal passage of the 2006 Animal Enterprise Terrorism Act, while the ag-gag bills take several of the key strategies from the ALEC model legislation, applying them to specific local and legislative contexts (Landfried, 2013).

Across the statutes, the primary aim has been to criminalize one or more of the following activities—the filming of any animal agricultural or processing activities, trespassing in animal production facilities, employment fraud in animal production settings, distribution of animal production recordings, and delayed reporting of animal abuse (Landfried, 2013). The unauthorized filming and trespassing components of the bills are fairly self-evident, while employment fraud is generally concerned with activists who provide false information about their background or affiliation with animal advocacy groups in order to gain employment and access. The distribution component is primarily concerned with establishing "vicarious liability" against animal advocacy organizations that distribute undercover video content that was filmed by activists. This arises from the fact that many of the activists who shoot

undercover video have few, if any, assets—vicarious liability allows the animal agriculture industry to hold animal advocacy organizations that "aid and abet" such activities legally and financially accountable (Miller, 2013). On the reporting of animal abuse, some bills require those who witness acts of cruelty to immediately notify proper plant officials and legal authorities—usually within 24 hours—rather than waiting any additional time to edit the materials or compile additional evidence of more systemic violations (Lee, 2013).

To date, research and scholarship on the ag-gag laws has come primarily from journalists and legal scholars. Several journalistic discussions of the history and scope of ag-gag have led to significant popular attention and public opposition to the statutes (Bittman, 2011; Genoways, 2013). Legal research has focused primarily on the constitutional and First Amendment implications, with scholars generally finding some, but not necessarily all, of the components to have shaky legal grounds (Landfried, 2013). Despite—or perhaps, in part, because of—significant public outcry, ag-gag laws have actually had little, if any, applications to date.

The fact that ag-gag laws have received minimal legal application speaks back to a central thesis of this paper. Indeed, what seems to be at work in this controversy is not only a question of the legal actions of animal activists, but also a broader question about the types of stories that can be told and the type of knowledge that can be constructed regarding how animals are produced for food in contemporary America. The remainder of this paper, then, focuses not on the legal dynamics of the case, but rather provides an interrogation of the stories told by stakeholders involved in advancing and opposing the ag-gag laws. It is attention to the mediated "image battles" of industrial animal agriculture that can shed light on the types of storytelling that shapes public understandings of the contemporary system in the digital age. Understanding these narratives through an analysis of communicative processes helps scholars investigate the "black box" of agnotology, exploring how knowledge and non-knowledge regarding vital industrial environmental systems are constructed in the contemporary risk society.

To Gag or Not to Gag?

The analysis to follow was informed by an extensive review of publically available materials regarding the ag-gag controversy. Journalistic publications were collected through targeted searches on Lexis-Nexis Academic, as well as through internal searches on the websites of relevant agricultural industry groups, animal advocacy, and civil liberties organizations. Several videos and radio programs were included in the analysis, including selections from the 2013 annual conference of the Animal Agriculture Alliance, as well as coverage of the meat industry on outlets like the Heritage Radio Network. Directed search terms included "ag-gag," "farm protection" and "agricultural interference," while the time period of the search was between 1 January 2011 and 31 December 2013. These dozens of multimedia materials were analyzed through an iterative method of constant comparison, with codes and themes generated through qualitative immersion (Charmaz, 2000). The aim of my qualitative

approach was to advance what I term a storytelling analysis of the ag-gag debates. As Lejano, Ingram, and Ingram (2013) have described, a number of sometimes distinct, sometimes interchangeable concepts are used as foundations to interpret or render meaning to events and things through story-based qualitative inquiry—frame analysis, discourse analysis, and narrative analysis among them. In this work, I build upon George Gerbner's (1999) insight that stories are the fundamental discursive units that "weave the seamless web of our cultural environment" (p. 9). My method of research therefore involved identifying the central aspects of the stories told by stakeholders engaged in the ag-gag debates. Following Gerbner's three-pronged conceptual model, the objective was to understand how the stories told speak to the ways that stakeholder groups perceive animal production processes to work, understand what they are, and decide what we should do about them.

The paper continues by first outlining the three primary standpoints that were identified through this research process—perspectives from members of "Big Agriculture" who supported the legislation, oppositional arguments from animal producers and meat-eaters who called for greater transparency, and steadfast opposition from first amendment and animal advocacy interests who saw the legislation as masking fundamental flaws in contemporary animal production systems. Following this descriptive section, the article concludes by drawing upon Gerbner's (1999) storytelling functions in order to reflect upon the relationship between the stakeholder groups' diverse storytelling practices and the implications for research and practice. Before moving forward, however, a brief note on how my own scholarly positionality plays into this analysis is in order. Indeed, I would be remiss as an author committed to the cause of animal rights not to mention that it is a story of steadfast opposition to ag-gag laws, and to the industrial animal production system writ large, that I find the most resonant and logically consistent. Still, in conducting social research in this manner, I am committed to the idea that my own knowledge of this system is shaped by a certain set of values and a specific arena of personal and professional knowledge that contributes to such a conclusion. This paper, therefore, does not take convincing the reader to support an animal rights approach as its primary aim. Rather, my goal in exploring the diversity of stories told in the ag-gag debates, as well as interrogating the value systems that undergird those storytelling practices, is to investigate the constructed and contingent nature of knowledge and non-knowledge in the techno-environmental debates that characterize reflexive modernity. From there, as scholars and citizens, we will all be better equipped to understand how the stories we tell play a key role in shaping the present and future of animal production processes.

Perspectives from big agriculture

When outlining their case for the need for the legislation, politicians and agribusiness spokespersons depended upon several primary lines of storytelling. First, they were disdainful of the ag-gag moniker, instead insisting on "farm protection" or "agricultural interference." This name underscored their initial defense, which

suggested that the laws were needed to protect farmers from exploitation, ensuring that local economies would not be disturbed by meddling activists. While agribusiness interests recognized that animal abuse did happen in the animal production and slaughter process, such cases were the actions of a few "bad apples" whose behavior should not prevent the many good animal producers from being able to prosper. Emily Meredith, the Communications Director for the Animal Agriculture Alliance, a non-profit organization that advocates for the industry, explained this perspective:

> And this farm protection legislation, which has been termed ag-gag legislation by the activist community, is extremely important because these undercover videos are harmful to the farm owners where these videos are taped, the farm families that work those farms day in and day out, and the animal agriculture industry truly as a whole. …This legislation is meant to protect the right of these people to continue to operate their farms and ranches and to continue to provide food to this hungry country and the world. (*Democracy Now*, 2013)

From there, proponents of the bills took aim at the animal advocates, accusing them of caring little for the welfare of farmers, animals, or consumers. They turned the tables on major animal rights organizations, arguing that their videos were selectively edited and their campaigns dishonest. Instead of preventing cruelty, they argued that animal advocacy groups actually caused *more* cruelty by not immediately reporting instances of animal abuse, waiting instead to produce videos that were used in fundraising efforts. Ultimately, undercover videos of factory farming and slaughter-house work were simply tools to bankroll what they described as a multimillion dollar industry of animal rights campaigning. Campaigners were not so much interested in improving animal agriculture, but rather slandering the industry in order to destroy the current system. In their support of the farm protection statutes, defenders of the oft-maligned "Big Agricultural" industry aimed to shift the narrative to focus on the credibility of what they might have termed "Big Animal Rights." This criticism of the value of the animal rights industry was exemplified by Emily Meredith during an interview on CNN: "This (law) is trying to prevent activists from using these videos for personal gain, which is what they do. These videos pad their bottom line and pad their coffers" (*CNN Saturday Morning News*, 2013).

Finally, supporters of the bills turned their attention to the ignorance of consumers as an additional reason for the laws' necessity. Simply put, everyday consumers do not understand what common practices are in animal agriculture and slaughter—the farm protection laws ensure that they are not misinformed about or frightened by what is standard operating procedure. Kelly Ludlum, the American Farm Bureau's director of Congressional relations, compared the videos to seeing open-heart surgery for the first time: "They could be performing a perfect procedure, but you would consider it abhorrent that they were cutting a person open" (Oppell, 2013). Members of the industry pointed to the widespread use of common practices, the regulation of the industry by government and third-party groups, and the involvement of veterinarians in the process as reasons for faith in the status quo. Joe Miller, a lawyer for the industrial-scale egg-producing Rose Acre Farms, outlined this perspective on

consumer ignorance during a speech at the Animal Agriculture Alliance's 2013 summit:

> I've got a right to know where my food is (coming from)—actually you don't. There is no constitutional right to know where your food came from. It just does not exist … (Consumers) are never going to understand our industry. …We've gone to these types of systems because the animal health improved, animal structures, animal socialization has improved. That's what we need to get out to the public is this is a better system. Just trust us on this. (Miller, 2013)

Opposition from animal producers and meat-eaters

While advocates for the consolidated powers in the animal agriculture industry attempted to portray the farm protection laws as a necessary good for the animal production business, significant opposition existed from within that very industry. Indeed, especially among smaller-scale animal producers, food system workers aligned with more sustainable and economically diverse animal production processes, and a significant proportion of everyday meat consumers, the movement toward ag-gag was harshly rebuked. Before an Iowa ag-gag bill was passed, for instance, a survey conducted by Mason-Dixon Polling & Research found that 65% of Iowa voters opposed the bill before the Iowa legislature (Jacobs, 2011). In an unscientific poll on BeefMagazine.com—a leading cattle industry publication—over 400 voters responded to a question on whether ag-gag laws were a good idea for the livestock industry to pursue—over 60% of respondents replied "No" (Radke, 2012).

These constituencies generally asserted two primary reasons for their opposition to the bills. First, they argued that the bills necessarily damage public perceptions regarding animal producers, leading to an environment of distrust. By pushing for efforts to conceal the industry, they suggested, the industry looks like it has something to hide. Providing counterpoints to Big Ag advocates like Joe Miller who called for unquestioned trust, as well as to animal rights activists who argued the industry was outright abusive, this perspective took a middle way. A small-scale Wisconsin-based dairy farmer opined on her blog:

> We have reached a point where hiding our practices is the last thing in the world we need to do. If we can't give reasonable explanations for our practices to the people who buy our products then I think we need to look at our practices. I'm not saying that we have to cave into the demands of animal rights activists by any means. This isn't about the small percentage of people that seem to make the most noise, it's about the moms and dads that want to know more about how the meat they are about to purchase was cared for while it was an animal. (Dairy-Carrie, 2013)

The key theme throughout these discussions centered on notions of communication and *transparency* in order to inform an audience of consumer-citizens. Advocates of this perspective often lauded the work of Temple Grandin—the animal scientist known for her autism advocacy as well as her work designing "humane" cow slaughter systems. Grandin recently produced several videos that took viewers inside

one of her slaughterhouses and has advocated for meat producers to improve their communication skills through openness:

> The meat industry has done a poor job communicating the improvements that have been made with the public. Plants that are doing a good job should show what they are doing. Opening the doors electronically would be very easy with video streamed out to webpages. (Grandin, 2013, p. 506)

For these reasons, Lisa M. Keefe, editor of *meatingplace*, a multimedia information hub for the meat- and poultry-processing industry, described the ag-gag efforts as the "wrong battle":

> Making sure that proper animal handling procedures are followed industry-wide is the goal, and that's a message that must be delivered eyeball-to-eyeball. Unpleasant? Sure, but it's your job. Making sure the activists don't have anything to video is everybody's job. (Keefe, 2013, p. 2)

Steadfast opposition: first amendment, animal welfare, and animal rights

A broad coalition of groups and individuals came out in strong opposition to the ag-gag laws, with reasoning that moved beyond a simple call for transparency and pointed instead to fundamental flaws in the current animal production system. In a joint statement of over 50 "civil liberties, public health, food safety, environmental, food justice, animal welfare, legal, workers' rights, journalism, and First Amendment organizations and individuals," the opposition declared the foundations of its perspective:

> Not only would these bills perpetuate animal abuse on industrial farms, they would also threaten workers' rights, consumer health and safety, law enforcement investigations and the freedom of journalists, employees and the public at large to share information about something as fundamental as our food supply. (Statement of Opposition, 2013)

Even if seemingly unified in this statement, the diverse groups involved actually brought to the ag-gag debates several different motivations and philosophical approaches, a fact that speaks to the complexity of the broader animal production and protection issue. Indeed, some advocates tended to focus on the constitutional and investigatory concerns that the legislation brought to the table. They emphasized the fact that the statutes were fundamental infringements on the rights of free speech, free distribution of content, and whistleblower protections, with implications that could extend well beyond animal agriculture. Gabe Rottman, legislative counsel for the American Civil Liberties Union, outlined this case:

> There are very limited categories of speech—think perjury, price-fixing, or threatening to punch someone in the face—that are subject to lesser First Amendment protection because they are inherently harmful. But ag-gag laws cover speech without evidence of harm, making it illegal to record video without consent, or to lie on your resume to get that video, even if you never do anything with it. (Rottman, 2013)

Advocates from mainstream animal welfare organizations took a different tack. While undoubtedly concerned about the constitutional implications, their primary line of argument began with the fact that undercover investigations have been central to preventing outrageous acts of animal cruelty and minimizing the risks of food safety scares. What the ag-gag laws stood in the way of was necessary *accountability* for an industry that should be beholden to the people. They pointed to instances in which undercover videos led to the prosecution of abusive workers in factory farms and slaughterhouses, as well as instances in which footage led directly to food recalls in order to protect public health. Ed Sayres, then-President of the American Society for the Prevention of Cruelty to Animals, exemplified this approach:

> Four years ago, undercover video led to the largest beef recall in U.S. history. The video, taken at Hallmark Meat Packing Co. in Chino, Calif., revealed workers at the slaughter plant kicking sick cows, ramming cows with the blades of a forklift, and torturing crippled cows to force them to walk to slaughter. …Legislators bent on suppressing exposés through the passage of Ag-Gag legislation are not only harming animals, but putting all of us – including our children – in jeopardy by preventing our access to critical information about our food supply. (Sayres, 2012)

Finally, a third approach incorporated the above perspectives, but pushed the public to think critically about the fundamentals of the entire animal agricultural system. Animal rights advocates conceptualized ag-gag laws as taking away a powerful "image event" tool for exposing what they argued were the brutal realities of industrial animal production in order to shift the public consciousness. From this perspective, undercover video was not a force to uncover isolated acts of cruelty and food safety concerns, but rather a method of digital media *exposure* that would indict the entire system as one that is based on acts of cruelty and unsafe practices. Journalist Will Potter's remarks in conversation with the Animal Legal Defense Fund showed this broader scope of intention:

> We've seen, in the last couple of years, the true power of undercover investigators completely changing the national dialogue about animal welfare, factory farming, and veganism. …They have completely changed the national discussion about the proper way of treating animals in agriculture and whether or not they should be used at all, and whether people should go vegetarian and vegan. (Animal Legal Defense Fund, n.d.)

Different Stories, Different Non-knowledge

The above section outlined the contours of debate that have taken shape in light of recent ag-gag legislation and subsequent controversy. At a basic level, the analysis demonstrates that a simple binary that situates the debate as a contest between the animal agriculture industry, on one hand, and its animal welfare/animal rights opponents, on the other hand, is insufficient. Further, it is clear that elements of the debate go beyond the question of whether or not undercover activists and their allies should be criminally prosecuted for the production and distribution of videos of animal agriculture facilities. Rather, the case pushes us to critically interrogate the

types of stories about animal agriculture that are told in contemporary American society. Echoing Gerbner (1999), what do these views on the ag-gag debate say about societal stories regarding how animal production processes work, what animal production is, and what we should do about it? With a storytelling analysis as a guide, we can consider how the stories that characterize mediated discussions related to the ag-gag laws help to construct what we do and do not know about industrial animal agriculture's environment of risk.

For Big Ag and its supporters, animal agriculture works as a complex technological system that is fundamental to supporting local economies and feeding the demands of the eating public. While it may be difficult for a public that is well removed from animal agriculture to understand, the system is ultimately efficient, well regulated, humane, and sustainable. Animal rights activists who attempt to prove otherwise are operating only in their self-interest. What we as a public need to do, therefore, is to look away from their procedures, ignore misleading animal rights activists, and trust instead that the industry will act in a forthright manner to produce animal-based food that is healthy, tasty, and devoid of cruelty. In this sense, the public has what Beck and Wehling (2012) have described as a "right *not* to know"—the ag-gag measures help support this stance.

For members of the animal production and slaughter communities, along with their consumer allies, who together oppose the ag-gag laws, a slightly different story is told. Most agree with the industry's perspective regarding how animal production systems work and what animal agriculture entails. Yet, in terms of what to do about it, they suggest that transparency is preferable to concealment. When they open up their operations for people to see, this story suggests, what will become clear is that most of those involved take great care of their animals and deliver up a valuable product for the eating public. This level of transparency is also seen as a valuable tool to push the minority that employs inhumane and unsafe practices either out of the business or toward better procedures.

The steadfast opposition to the ag-gag laws tells different sets of stories. To animal welfare proponents and first amendment activists, industrial animal agriculture is a necessary system, one that seems to have some deep but fixable flaws in its structure. The possibility to humanely produce animals into healthy and safe food is increasingly being eroded by lax regulatory oversight and poor business practices; such practices have come to light through the efforts of activists and whistleblowers that would be criminalized by the ag-gag laws. Their story differs from those who oppose ag-gag laws from within the industry, however, in that transparency alone is seen as insufficient. Instead, ag-gag laws prevent what they suggest is needed in the industry—more clearly defined and enforced humane standards, high levels of accountability, and an openness that ensures the public's right to know and participate in deciding how animal production and slaughter takes place. Transparency only with greater accountability, this story goes, may lead us to make significant changes within a system that could use more intensive scrutiny.

From the animal rights perspective, however, the story of industrial animal agriculture is one of a profit-driven system that is ultimately unnecessary, inhumane, and unsustainable. Our concerns should focus not only on the anthropocentric implications of animal production for public health and farm economies—the topics often at the heart of other arguments surrounding ag-gag—but rather the scope and scale of animal production and slaughter itself should be understood as a basic violation of the rights of sentient non-human animals. The ag-gag laws are illustrative of a broader strategy in industrial animal production that conceals a horrific system from an unknowing public. Undercover videos like the ones criminalized have the potential to fundamentally reshape human–animal relations. What we should be doing is exposing and shining a light on these practices to usher in a new consciousness and a new set of systems for feeding the public.

What, then, does this storytelling analysis contribute to the theoretical discussions, under way for some time in the interdisciplinary field of STS, regarding the co-production of knowledge, non-knowledge, and agnotology? Elsewhere, Beck and Wehling have argued that society must recognize "the plurality, legitimacy and equal status in principle of different perceptions of non-knowing" (p. 52). Fundamentally, this analysis supports this contention, demonstrating the very value-laden nature of the knowledge and non-knowledge production processes. Indeed, depending on with which group's story you most identify with a case could be made that any of those involved in the debate lack the necessary knowledge to make full sense of the issues at hand.

Big Ag suggests that the lack of knowledge about animal production among the eating public should be handled by shielding them from any information that might disturb them. It is the animal activists, they argue, who are most ignorant, in that they fundamentally misunderstand the human–animal relationship, the importance of animal production for the American way of life, and the best way to raise animals for these purposes. Those who oppose the ag-gag legislation from within the animal production world agree with the latter point, but also suggest that Big Ag power players are ignorant for thinking that today's consumer public should be shielded, opting instead for more direct engagement to communicate why they do what they do. Animal rights activists, by contrast, tend to think the world around them is full of ignorance, with consumers unaware of, and producers unconcerned by, the damage they do to sentient non-human animal beings. From this perspective, ag-gag laws operate as ideological devices to keep the nation in the dark and maintain a status quo that they contend is ethically and environmentally destructive.

I have already tipped my hand as to where my allegiance rests in this debate. Based on my understanding of the negative impacts that contemporary industrial animal production has on public health, the environment, food safety, and the welfare of animals, it seems clear to me that ag-gag ultimately perpetuates an unsustainable and inhumane industrialized system of human–animal interaction. In this sense, I would situate ag-gag within Proctor's (2008) typology of agnotology as a "strategic ploy" or "active construct" that perpetuates public ignorance related to animal

production processes. Indeed, it is my hope that the future will lead to greater exposure of the detrimental and unethical nature of these systems, such that animal rights will be taken seriously and our methods of animal production will be radically and fundamentally transformed. Still, I recognize that, like the rest, the stories I tell about animal production processes are fundamentally shaped by my own value system and a unique domain of personal and professional knowledge. My claims as to what we should do – as well as what we do (not) know – about the contemporary system are necessarily contingent upon these interactive dynamics. All conceptions of non-knowledge, it seems, are ultimately in the eye of the beholder, sets of values-based judgments that are shaped by the stories that we tell, the stories that resonate most within our own social and political worlds.

Conclusion: Storytelling and the Future of Animal Production

The different sets of stories and different sets of knowledge outlined above connect to different sets of futures—a maintenance of the status quo, variations on reform and improvement, or a wholesale overhaul of contemporary systems. The extent to which any of these futures are realized depends in no small part on the ability of these stories to be integrated into the mediated narratives that play an important role in constructing public perceptions about the industrial animal production system in the digital age. Public opposition to the ag-gag laws suggests that efforts of the power players in the animal agriculture industry to conceal their practices may be difficult to maintain in the long run. Consistent with the discursive nature of reflexive modernity, an assertion that the public should simply trust their expertise is out of step with contemporary global risk society. With that said, given their enduring political, economic, and symbolic power, as well as their vested interest in maintaining contemporary practice, one can expect that this fight will continue for some time. On the other side of the spectrum, animal rights proponents' belief that mediated image events that expose standard animal production procedures will lead to fundamental cultural changes is empirically suspect. Indeed, even with additional media attention to the issue, other elements of the public's communication environment will still be dominated by stories that deflect and ignore some of the fundamental questions of animal treatment in our society. As Pachirat (2011) has suggested, it remains an open question as to whether full exposure of factory farming will improve the treatment of animals or, paradoxically, might lead to the very opposite outcome.

The most likely scenario, it seems, is that our society will continue to move forward with a set of somewhat contradictory and arbitrary rules as it relates to animal treatment. The middle way is exemplified by those animal producers who call for greater transparency, as well as those animal welfarists who call for greater accountability. This approach is characterized by a perspective that says we must industrially produce certain animals for food, that their raising and slaughter can be done humanely, and that our society simply needs to do more to communicate about and improve upon these practices to protect the welfare of those animals involved.

Temple Grandin has been joined by the prominent food writer Michael Pollan, for instance, in a call for a "glass walls" approach to transparent animal production: "If there's any new right we need to establish," Pollan wrote, "maybe this is the one: The right, I mean, to look" (2007, p. 332).

As the STS scholar Sheila Jasanoff (2005) has demonstrated, in the USA in particular, techno-environmental controversies surrounding food issues are often adjudicated through two intersecting domains—legislative or judicial proceedings, on one hand, and consumer markets, on the other hand. Championed by the likes of Grandin and Pollan, a story that calls for moderate regulation of animal welfare in production processes, combined with a market-based approach that gives consumer-citizens the power to decide for themselves what types of foods they want to purchase, is likely to resonate with much of the meat-eating American public. With some level of regulatory and market-based transparency and accountability in place, the public will have the power to choose whether or not they want to exercise their "right to look." Following that, citizens will be able to personally interrogate how the visual knowledge of animal production processes—or, alternately, how a maintained level of visual ignorance—relates to their personal value system. The story that this value-oriented knowledge or non-knowledge tells will help them decide exactly what they should do about it.

The most stalwart defenders of Big Ag, of course, will continue to argue that the entire controversy represents counterproductive meddling into production processes that work just fine. Animal rights activists will conversely argue that transparency and accountability alone represent half-measures that hardly dig deep enough to illuminate the destructiveness and cruelty at the root of the system. Regardless, in our efforts to understand the processes through which knowledge is or is not created —not only in the food system, but throughout the technological and environmental systems of our global risk society—it is clear that we should pay attention to the stories that are told, in media and throughout our social worlds. As the act that tells us how things work, what things are, and what we should do about it, storytelling represents a central dynamic of reflexive modernity, a process that shapes what we do *not* know as much as what we do.

Notes

1. Alternately, and perhaps less pejoratively, termed non-knowledge.
2. On account of its wider use in public discourse, the remainder of the paper will employ the term ag-gag as opposed to farm protection or agricultural interference, except when specifically used by the animal production industry.
3. A Tennessee bill was passed by the legislature, but subsequently vetoed by the governor.

References

Akhtar, A. (2012). *Animals and public health: Why treating animals better is critical to human welfare*. New York, NY: Palgrave Macmillan.

American Legislative Exchange Council. (2003). Animal & ecological terrorism in America. Retrieved from http://www.greenisthenewred.com/blog/wp-content/Images/alec_animal_ecological_terrorism_bill.pdf

Animal Legal Defense Fund. (n.d.) Interview with Will Potter. Retrieved from http://aldf.org/cases-campaigns/features/interview-with-will-potter/

Asmus, L. (2010). *Milking the media: The U.S. political economy's obstruction of food free speech* (Master's Thesis). Florida State University, Tallahassee, FL.

Beck, U. (1992). *Risk society: Towards a new modernity*. New Delhi: Sage.

Beck, U., & Wehling, P. (2012). The politics of non-knowing. In Domínguez Rubio & Baert (Eds.), *The politics of knowledge* (pp. 33–57). New York, NY: Routledge.

Bittman, M. (2011, April 6). Who protects the animals? *New York Times*. Retrieved from http://opinionator.blogs.nytimes.com/2011/04/26/who-protects-the-animals/?_r=0

Charmaz, K. (2000). Grounded theory in the 21st century: Applications for advancing social justice studies. In N. K. Denzin & Y. S. Lincoln (Eds.), *Handbook of qualitative research* (2nd ed., pp. 509–537). Thousand Oaks, CA: SAGE Publications.

Chirstensen, J. (2008). Smoking out objectivity: Journalistic gears in the agnotology machine. In R. N. Proctor and L. Schiebinger (Eds.), *Agnotology: The making and unmaking of ignorance* (pp. 266–282). Stanford: Stanford University Press.

CNN Saturday Morning News. (2013, April 13). New laws challenge legality of videos shot on farms of animal abuse. Retrieved from http://edition.cnn.com/TRANSCRIPTS/1304/13/smn.04.html

DairyCarrie. (2013, April 16). What are you hiding? Ag gag laws aren't the solution. Retrieved from http://dairycarrie.com/2013/04/16/aggag/

Delicath, J. W., & Deluca, K. M. (2003). Image events, the public sphere, and argumentative practice: The case of radical environmental groups. *Argumentation*, *17*, 315–333. doi:10.1023/A:1025179019397

Democracy Now. (2013, April 9). Debate: After activists covertly expose animal cruelty, should they be targeted with "Ag-gag" laws? Retrieved from http://www.democracynow.org/2013/4/9/debate_after_activists_covertly_expose_animal

Domínguez Rubio, F., & Baert, P. (2012). Politics of knowledge: An introduction. In F. Domínguez Rubio & P. Baert (Eds.), *The politics of knowledge* (pp. 1–10). New York, NY: Routledge.

Fisher, W. R. (1985). The narrative paradigm: In the beginning. *Journal of Communication*, *35*(4), 74–89. doi:10.1111/j.1460-2466.1985.tb02974.x

Freeman, C. P. (2009). This little piggy went to press: The American news media's construction of animals in agriculture. *The Communication Review*, *12*(1), 78–103. doi:10.1080/10714420902717764

Genoways, T. (2013, July/August). Gagged by Big Ag. *Mother Jones*. Retrieved from http://www.motherjones.com/environment/2013/06/ag-gag-laws-mowmar-farms

Gerbner, G. (1999). The stories we tell. *Peace Review*, *11*(1), 9–15. doi:10.1080/10402659908426225

Giddens, A. (1990). *Consequences of modernity*. Stanford: Stanford University Press.

Grandin, T. (2013). Making slaughterhouses more humane for cattle, pigs, and sheep. *Annual Review of Animal Biosciences*, *1*, 491–512. doi:10.1146/annurev-animal-031412-103713

Grauerholz, L. (2007). Cute enough to eat: The transformation of animals into meat for human consumption in commercialized images. *Humanity & Society*, *31*, 334–354. doi:10.1177/016059760703100404

Jacobs, J. (2011, March 22). Survey finds Iowa voters oppose prohibiting secret animal-abuse videos. *Des Moines Register*. Retrieved from http://blogs.desmoinesregister.com/dmr/index.php/2011/03/22/survey-finds-iowa-voters-oppose-prohibiting-secret-animal-abuse-videos/article

James, H. S., Hendrickson, M. K., & Howard, P. H. (2012). Networks, power and dependency in the agrifood industry. In H. S. James, (Ed.), *The ethics and economics of agrifood competition* (Vol. 20, pp. 99–126). Dordrecht: Springer Netherlands.

Jasanoff, S. (2005). *Designs on nature: Science and democracy in Europe and the United States*. Princeton, NJ: Princeton University Press.

Keefe, L. (2013, April). Wrong battle. *Meatingplace*, p. 2.

Landfried, J. (2013). Bound and gagged: Potential first amendment challenges to "ag-gag" laws. *Duke Environmental Law & Policy Porum*, *23*, 377–403.

Lee, D. (2013, August 6). "Ag-gag" reflex. *Columbia Journalism Review*. Retrieved from http://www.cjr.org/united_states_project/state_legislatures_are_pushing_ag-gag_bills_and_news_associations_are_fighting_back.php

Lejano, R., Ingram, M., & Ingram, H. (2013). *The power of narrative in environmental networks*. Cambridge: MIT Press.

Lindenfeld, L. (2010). Can documentary food films like Food Inc. achieve their promise? *Environmental Communication*, *4*(3), 378–386.

Miller, J. (2013). Farm protection legislation: How it promotes animal care. Presentation delivered at the 2013 animal agriculture alliance stakeholder summit. Retrieved from http://agwired.com/2013/05/07/protecting-farms-promoting-animal-care/

Munro, L. (2005). Strategies, action repertoires and DIY activism in the animal rights movement. *Social Movement Studies*, *4*(1), 75–94. doi:10.1080/14742830500051994

Opel, A., Johnston, J., & Wilk, R. (2010). Food, culture and the environment: Communicating about what we eat. *Environmental Communication*, *4*, 251–254.

Oppell, R. (2013, April 6). Taping of farm cruelty is becoming the crime. *New York Times*. Retrieved from http://www.nytimes.com/2013/04/07/us/taping-of-farm-cruelty-is-becoming-the-crime.html?pagewanted=all&_r=0

Oreskes, N., & Conway, E. (2010). *Merchants of doubt*. New York, NY: Bloomsbury

Pachirat, T. (2011). *Every twelve seconds: Industrialized slaughter and the politics of sight*. New Haven, CT: Yale University Press.

Pew Commission on Industrial Farm Animal Production (2008). *Putting meat on the table: Industrial farm animal production in America*. Baltimore, MD. The Pew Charitable Trusts and Johns Hopkins Bloomberg School of Public Health.

Pollan, M. (2007). *The omnivore's dilemma: A natural history of four meals*. New York, NY: Penguin Press.

Potter, W. (2011). *Green is the new red: An insider's account of a social movement under siege*. San Francisco, CA: City Lights Books.

Proctor, R. N. (2008). Agnotology: A missing term to describe the cultural production of ignorance (and its study). In R.N. Proctor & L. Schiebinger (Eds.), *Agnotology: The making and unmaking of ignorance* (pp. 1–36). Stanford: Stanford University Press.

Radke, A. (2012, March 14). Do you support ag-gag laws? *Beef Magazine Blog*. Retrieved from http://beefmagazine.com/blog/do-you-support-ag-gag-laws

Rottman, G. (2013, May 3). "Ag-gag" not just about animal welfare. *ACLU Blog*. Retrieved from https://www.aclu.org/blog/free-speech/ag-gag-not-just-about-animal-welfare

Sayres, E. (2012, March 22). Ag-gag bills threaten our children, our freedom and our animals. Retrieved from http://www.huffingtonpost.com/ed-sayres/aggag-bills-threaten-our-_b_1370091.html

Simon, D. R. (2013). *Meatonomics*. San Francisco, CA: Conari Press.

Singer, P. (2002). *Animal liberation*. New York, NY: HarperCollins.

Statement of opposition to proposed "Ag-Gag" laws from broad spectrum of interest groups (2013). Retrieved from http://www.aspca.org/fight-cruelty/advocacy-center/ag-gag-whistleblower-suppression-legislation/statement-opposition

Sullivan, S., & Tuana, N. (2007). *Race and epistemologies of ignorance*. Albany, NY: State University Press.

Tonsor, G. T., & Olynk, N. J. (2011). Impacts of animal well-being and welfare media on meat demand. *Journal of Agricultural Economics*, *62*(1), 59–72. doi:10.1111/j.1477–9552.2010.00266.x